

Rajendra Singh v. U.P. Power Corporation

High Court of Judicature at Allahabad · Division Bench · 24 May 2022 · Writ-C No. 13234 of 2022 · **Writ disposed; petitioner relegated to clause 6.5 objection; coercive action stayed eight weeks.**

HEADNOTE

A consumer's writ against a tube-well recovery certificate, seeking bill correction and reconnection, was disposed of without opinion on merits. Liberty was granted to file an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided in a time-bound manner, with coercive recovery stayed in the interim.

FACTUAL SUMMARY

Rajendra Singh, consumer of tube-well connection No. 5502/000561 under U.P. Power Corporation, challenged a recovery certificate dated 5 February 2022. He sought quashing of the recovery, correction of the bill and reconnection of supply. He claimed regular payment of dues, disconnection on 22 February 2020, a ledger adjustment of Rs. 1,32,756 on 10 May 2019, and two Sub Divisional Officer inspections that found nothing adverse.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed-bill-objection

HOLDING

Without expressing any opinion on merits, a writ challenging a recovery certificate and seeking bill correction and reconnection is disposed of by granting liberty to file an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided in accordance with law within four weeks of filing after hearing the consumer, with coercive action stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the recovery certificate and for bill correction and reconnection was disposed of by relegating the consumer to a clause 6.5 objection, without deciding merits. ¶ 4

clause-6.5-statutory-remedy-disputed-bill The disputed tube-well demand was left to be examined on a clause 6.5 objection to be decided in accordance with law within four weeks of filing. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE RECOVERY CERTIFICATE DATED 5 FEBRUARY 2022 AND OF THE DISPUTED TUBE-WELL BILL, AND ENTITLEMENT TO RECONNECTION

The Court expressly declined to express any opinion on the merits. ¶ 4